The Verpackungsgesetz and online retailers

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Mail order companies and online retailers – what will change under the PPWR?

Online retailers and mail order companies use packaging that is intended for shipping their products to end users.

Under the EU Packaging and Packaging Waste Regulation (PPWR), packaging used for online sales or other means of distance selling is considered e-commerce packaging. E-commerce packaging is categorised as transport packaging. Online retailers need to clarify whether they will be considered manufacturers from 12 August 2026 and thus (as has often been the case in practice) producers because this would mean that they are responsible for packaging compliance and for financing packaging recycling, as well as for the associated registration and reporting obligations.

The provisions governing packaging intended for shipment can be viewed from two perspectives: do you use packaging intended for shipment – or do you supply it? Please select:

Companies that supply empty packaging for shipment: e.g. packaging manufacturers, importers or wholesalers I supply empty shipment packaging for use in online retail

Online retailers and mail order companies that use packaging to ship their products I use packaging for online sales

Heads-up

In addition to clarifying who is responsible for financing packaging recycling, it must also be determined who is considered the manufacturer under the PPWR and therefore responsible for the packaging's technical documentation and declaration of conformity. Both obligations may – but do not necessarily have to – lie with the same company. The Zentrale Stelle Verpackungsregister (Central Agency Packaging Register – ZSVR) is the authority responsible for producer obligations; any questions about manufacturer obligations should be directed elsewhere.

Distinguishing between manufacturers & producers

What is e-commerce packaging?

Under the PPWR, packaging intended for shipment to end users is deemed to be e-commerce packaging if it is used for online sales or other means of distance selling. It is categorised as transport packaging. Transport packaging includes shipping boxes and bags, as well as other packaging materials used for shipping, such as labels, adhesive tape and filler material like plastic films, flakes or wrapping tissue.

Heads-up

Packaging intended for shipment is always subject to system participation, without exception. After use, it typically accumulates as waste with private households or comparable sources of waste generation. Under the PPWR, it must be viewed separately from the shipped product. As such, shipment packaging at large commercial enterprises and industrial recipients is also subject to the system participation requirement under an overall market assessment.

Who is an end user?

Under the PPWR, end users include both private consumers and professional end users, i.e. any natural or legal person who purchases a product without making it available again on the market in the same form.

I supply empty shipment packaging for use in online retail

The following situations are common practical examples to help give you an initial sense of your responsibilities. They are not intended to be exhaustive and you are still responsible for assessing your individual circumstances.

Packaging for online sales bearing an ordering party's name/logo/brand

If you manufacture packaging intended for shipment that bears an ordering party's name, logo or brand, or are instructed to design such packaging for them, that ordering party is considered both the manufacturer and producer under the PPWR – regardless of whether you are based in the same country or abroad.

This means: the responsibility for financing the recycling of the packaging in question (producer obligation) as well as the obligation to prepare the technical documentation and declaration of conformity (manufacturer obligation) lie with the ordering party. Please note: even if your company's name is also printed on the packaging in question, the responsibility still lies with the ordering party. However, as the supplier of the empty packaging, you are required under Article 16 PPWR to provide the ordering party with all information and documentation (such as the technical documentation) necessary to meet their manufacturer obligations and demonstrate the conformity of the packaging.

Micro-enterprises Under the PPWR, there is a narrowly defined exception to these manufacturer obligations for micro-enterprises (pursuant to 2003/361/EC: fewer than ten employees and an annual turnover or balance sheet total not exceeding two million euros): if you are a supplier of empty, complete packaging intended for shipment and you are based in the same Member State as the micro-enterprise, then you are considered the manufacturer and producer even if the micro-enterprise has you design the packaging under its own name or brand.

Packaging for online sales without a name/logo/brand, which I am the first to provide in the domestic supply chain

If you are the first party to make shipment packaging without an ordering party's name, logo or brand available within the domestic supply chain, you initiate the supply chain and are considered the producer under the PPWR. Producer status requires that the packaging must already be complete at the time it is delivered to your customers, for example, a cardboard box or a shipping envelope with an integrated self-adhesive strip. In this situation, either the manufacturer of the packaging or the importer or wholesaler that sources the packaging from abroad and redistributes it in Germany may be considered the producer.

Please note: who is considered the manufacturer and is therefore responsible for ensuring packaging conformity must be examined separately according to the circumstances. Please visit the Distinguishing between manufacturers & producers page for guidance on this matter.

Packaging materials without a name/logo/brand

If you supply individual packaging materials to your customers or ordering parties – such as cardboard boxes, adhesive tape or filler material – which are put together with other packaging components to form complete packaging, you are neither the manufacturer nor the producer within the meaning of the PPWR.

Please note: however, as the supplier of the empty packaging, you are required under Article 16 PPWR to provide the ordering party with all information and documentation (such as the technical documentation) necessary to meet their manufacturer obligations and demonstrate the conformity of the packaging.

I use packaging for online sales

The following situations are common practical examples to help give you an initial sense of your responsibilities. They are not intended to be exhaustive and you are still responsible for assessing your individual circumstances.

Packaging for online sales bearing my name/logo/brand

If you have another party design or manufacture packaging under your name, logo or brand and you use that packaging to ship your products, you are considered both the manufacturer and producer under the PPWR – regardless of whether the business from which you purchase the packaging is based in Germany or abroad. This means: you will be responsible for financing the recycling of this packaging as well as for its technical documentation and the declaration of conformity.

Please note: even if the name of your packaging supplier is also printed on the shipment packaging, this does not change anything about your responsibility. However, your supplier is required by Article 16 PPWR to provide you with all the information and documentation that you need to fulfil your obligations.

Micro-enterprises Under the PPWR, there is a narrowly defined exception to these manufacturer obligations for micro-enterprises (pursuant to 2003/361/EC: fewer than ten employees and an annual turnover or balance sheet total not exceeding two million euros): if you have packaging designed or manufactured under your own name, logo or brand, and the supplier of the empty, complete packaging intended for shipment is based in the same Member State as you, then your supplier is the manufacturer and producer.

Packaging for online sales without my name/logo/brand

If you use packaging without your name, logo or brand to ship your products, your responsibilities depend on the individual circumstances. Two scenarios may be particularly relevant:

Do you put different packaging materials (such as a cardboard, adhesive tape, filler material) together to form a unit of packaging for your online sales? If so, you are the manufacturer of that packaging because you are completing the packaging. You are also the producer under the PPWR and must finance the recycling of your packaging.

Do you change packaging that is already complete? If you add something to packaging that was already complete (such as packaging with an integrated adhesive strip), like additional adhesive tape or filler material, you need to check whether the change could negatively affect the conformity of the packaging. If it could influence or impact the recyclability of the relevant packaging, you are the manufacturer of that packaging under Article 21 PPWR as well as the producer with all the other associated obligations under packaging law. Please note: this also applies if you use primary packaging (sales packaging) to also ship your products and you add something to it.

Manufacturer or producer? Your obligations under packaging law:

As a manufacturer, you are responsible for the packaging's technical documentation and declaration of conformity. Whoever supplies you with your packaging or packaging materials has to provide you with all the information and documentation you need to fulfil this obligation. Please note: packaging conformity must be evaluated for the complete packaging in its final form. Considering each packaging material individually is not sufficient because recyclability depends on how all the packaging components work together.

As a producer, you must bear responsibility for financing the recycling of your packaging in the EU Member State where it accumulates as waste. You must ensure that all the packaging components participate with a system.

I ship directly to end users in Germany from abroad

If your company is located abroad and you ship packaged products directly to end users in Germany, then under the PPWR you are at a minimum the manufacturer and producer of the packaging intended for shipment that you use. It does not matter whether your company is located in another EU Member State or in a third country. This means: you will be responsible for financing the recycling of this packaging as well as for its technical documentation and the declaration of conformity. Please note: your supplier is required by Article 16 PPWR to provide you with all the information and documentation that you need to demonstrate packaging conformity.

You are also responsible for checking whether you have any other responsibilities, for example for the sales packaging of the products you distribute to your customers.

Please note: if your company is not established in Germany, you are required to appoint an authorised representative to fulfil your extended producer responsibility in Germany. The authorised representative will assume your obligations under packaging law, except for registering with the LUCID Packaging Register.

Authorising a representative

Due diligence obligation for online platforms and fulfilment service providers

If you distribute packaging or packaged products via online platforms, these platforms must check that you are complying with your obligations under packaging law. Before any services can be used, online platforms are required to obtain and verify (1) a confirmation from every producer that it is registered with the LUCID Packaging Register and (2) a self-certification that the producer has met its extended producer responsibility

requirements. Without this evidence, or if there are any irregularities, the packaged products may not be offeredon the online platform.

The same applies if you work with a fulfilment service provider and this fulfilment service provider is not the manufacturer of the packaging intended for shipment: the fulfilment service provider is also required to obtain this information before providing its services to you. If it determines that information is missing, inaccurate or incomplete, it is required to ask you to resolve the issue. If you do not comply with the request in time, the fulfilment service provider is required to stop providing services to you. Further information can be found in our knowledge base dedicated to fulfilment.

Please note: online platforms and fulfilment service providers can use the ZSVR's automated register excerpt to check your registration status because the LUCID Packaging Register is public.

Fulfilling extended producer responsibility for packaging for online sales

All companies that are considered producers under the PPWR and are required to fulfil their obligations in Germany must:

1. Create, check or update their registration with the LUCID Packaging Register

If you are a producer under the PPWR, you must be registered with the LUCID Packaging Register. If you are already registered, check and update your information in the LUCID Packaging Register. Please also ensure that all the brand names you use to distribute your products are fully and correctly filed.

2. Organise system participation

Enter into a system participation agreement with a system operator to finance the recycling of your packaging. You can find a list of system operators here. Ensure that your company does so in good time – before you make your packaging or your packaged products available or distribute them on the German market for the first time.

3. Report packaging volumes to the LUCID Packaging Register

File your packaging volume reports in good time in the LUCID Packaging Register. Please note: system participation and reporting packaging volumes to the LUCID Packaging Register require information about the packaging's material type, weight and volume, which you should obtain from the suppliers at an early stage.